

S. Ramamurthy vs Priyanka on 16 September, 2021

Author: G.Chandrasekharan

Bench: G.Chandrasekharan

C.R.P. (PD)

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 16.09.2021

CORAM:

THE HONOURABLE Mr. JUSTICE G.CHANDRASEKHARAN

C.R.P.(PD)No. 1698 of 2021

(Through Video Conference)

S. Ramamurthy

Versus

Priyanka

PRAYER: Civil Revision Petition filed under Article 227 of the Constitution of India to direct the Hon'ble Sub Court, Thirupathur, Vellore to expedite the trial and to dispose of the H.M.O.P. No. 136/2018 pending in its file within the period as fixed by this Hon'ble court in accordance with law.

For Petitioner : Mr.M. Danabal.

ORDER

This Civil Revision Petition is filed seeking direction to the learned Sub-

Judge, Sub Court, Thirupathur, Vellore to expedite the trial and to dispose of the H.M.O.P.No.136 of 2018 within a time to be fixed by this Court.

_____ <https://www.mhc.tn.gov.in/judis/>

2. The learned counsel for the petitioner submitted that the petitioner filed divorce petition against the respondent vide H.M.O.P.No.136 of 2018 on the ground of cruelty under Sections 13(1) (ia) and (ib) of Hindu Marriage Act.

3. From the side of petitioner, evidence is completed and the case is pending for respondent's side evidence. Therefore, the learned counsel for the petitioner seeks for a direction for disposal of this petition within a time frame to be fixed by this Court.

4. Considering the fact that this H.M.O.P. was filed in the 2018 and the fact that the petitioner's side evidence is completed and the case is pending for the respondent's side evidence, the learned Sub Judge, Sub Court, Tirupathur is directed to dispose of this H.M.O.P.No.136 of 2018 as expeditiously as possible, preferably within a period of four (04) months from the date of receipt of a copy of this order.

5. Accordingly, this Civil Revision Petition is disposed of. No costs.

16.09.2021 _____ <https://www.mhc.tn.gov.in/judis/> Index: Yes/ No Speaking Order / Non-Speaking Order sts/jai To The Sub-Judge, Sub Court, Thirupathur.

_____ <https://www.mhc.tn.gov.in/judis/> G.CHANDRASEKHARAN, J., sts/jai Order made in Dated:

16.09.2021 _____ <https://www.mhc.tn.gov.in/judis/>